



PERSONAL INJURY • INSIGHT

Insurance Settlement or Lawsuit? How Personal Injury Claims Actually Get Resolved

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Most personal injury cases settle with an insurance company long before anyone files a lawsuit, and that's usually the right outcome, not a consolation prize. Understanding how an insurer actually evaluates a claim, and when it's worth pushing past a settlement offer, is where most of the leverage in these cases actually sits.

The first offer is a starting point, not a number

Insurance adjusters are trained to open with a number well below what a claim is actually worth, betting that most people will accept it rather than push back. A documented claim, with medical records, wage loss records, and a clear account of how the injury has affected daily life, changes that calculation.

What actually drives claim value

Adjusters weigh medical treatment and its cost, lost income, the strength of the liability evidence, and how a jury might view the case if it went to trial. Gaps in treatment, or treatment that stops too early, are one of the fastest ways a legitimate injury claim gets undervalued.

When a lawsuit becomes necessary

Litigation usually enters the picture when an insurer refuses to offer a fair settlement, disputes liability outright, or when the statute of limitations is approaching and negotiations have stalled. Filing doesn't mean going to trial; most filed cases still settle, but filing changes the leverage in the negotiation.

The deadline doesn't wait for negotiations

Every state sets its own statute of limitations for personal injury claims, and it keeps running while you're negotiating with an insurer, whether or not a settlement feels close. Waiting too long to get a case evaluated is one of the most avoidable ways a valid claim gets lost entirely.

If you're mid-negotiation with an insurer and the offer feels low, it's worth having someone look at the file before you sign anything, since a signed release typically closes the door for good.

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